

CHAPTER 6

Epilogue: Black Policy Preferences, Congressional Behavior, and the Future of Representation for African-Americans

The preceding chapters have presented an investigation of legislative voting behavior on policies of primary interest to blacks. In the investigation we have looked at voting patterns, tested models, and examined evidence, all for the purpose of assessing the overall quality of representation for blacks in Congress. This concluding chapter looks at the implications of the results in this book and speculates about the level of congressional responsiveness to black interests in the future.

The Ebb and Flow of Congressional Responsiveness to Black Interests

It would be useful to place the analysis into a historical perspective in order to better understand what might lie ahead. Since the Civil War there has been an ebb and flow of congressional responsiveness to black policy preferences within the political system. Specifically, there have been four distinct periods of congressional responsiveness and unresponsiveness. During the period of Reconstruction Congress was in the vanguard of policy responsiveness. Neither judicial nor executive action could match or interfere with Congress' protection of the constitutional rights of freed slaves. For instance, when President Andrew Johnson sought to interfere with Congress' plan for Reconstruction, he was impeached and missed conviction by only one vote. Further testimony to Congress' commitment to civil rights for freed blacks was passage of the Civil War Amendments, followed by several civil rights laws. The major consequence of this expansion of federal power was the curtailment of states' rights and the nationalization of civil rights for blacks in America.

The second period, from about 1883 to 1957, constitutes the quintessential model of congressional unresponsiveness to the needs and interests of black Americans—a supreme example of unrepresentative democracy. One of the major reasons why Reconstruction fell woefully short of its goal of achieving civil rights equality for black Americans is because Congress refused to pass any civil rights statutes for nearly three-quarters of a century after the early 1880s. Congressional inaction sent a clear message to institutions and people that the protection of civil rights for blacks was not the business of the United States government.

Signs of a renewed federal legislative concern with racial issues began when Congress passed the Civil Rights Act of 1957. In this century congressional responsiveness to black policy interests reached its apex when the Civil Rights Act of 1964 and the Voting Rights Act of 1965 were enacted into law. They represent the most sweeping antibias legislation enacted since the period of Reconstruction. Numerous compromises had to be made in order to get the bills through Congress. Ironically, compromises that were made on the civil rights bill actually strengthened it beyond what President Kennedy had initially requested. In the end it was a sound piece of legislation containing titles dealing with voting rights, public accommodations, desegregation of public facilities, desegregation of public education, and the creation of governmental enforcement agencies empowered to carry out the law. But this was a period when civil rights issues were in the spotlight of public attention, at the cutting edge of social debate. It was a time when the focus was clearly on the plight of blacks, the victims of overt racism and discrimination. It was also the time of bipartisan cooperation in Congress, a time of executive-legislative cooperation to ensure passage of strong civil rights legislation.

Since the 1960s Congress has addressed civil rights issues on many occasions, but it would be misleading to conclude that congressional responsiveness to black policy preferences is at a comparable level to that of the 1960s. To be sure, racial issues continue to arouse intense feelings in America. It is also true that there have been some notable accomplishments by Congress over the past three decades, including extensions of the Civil Rights Act and the Voting Rights Act, Martin Luther King Jr. Holiday (1983), South Africa Sanctions (1985–86), Fair Housing Act (1988), and the National Voter Registration Bill (1993). But behind these accomplishments is the realization that a sizable proportion of the House delegation is unwilling to support strong civil rights measures that would help to combat subtle forms of discrimination against racial minorities and women. Here it is important to emphasize the utility of the paradigm in supporting the claim of waning congressional responsiveness to black interests. Based on the theoretical model, the evidence in this book shows that the political parties are more polarized than ever on the issue of civil rights. Even though the Democratic members are far more supportive of civil rights than are their Republican colleagues, this does not mean that the Democratic Party has become internally cohesive. The analysis provides strong evidence for a pattern of deviant voting behavior within the party. A sizable proportion of the white southern Democratic delegation, as well as a few white nonsouthern Democrats, are reluctant to support liberal proposals.

In assessing the level of congressional responsiveness to black policy interests in recent years, one concludes from the findings in this book that the overall policy record of Congress is basically modest. The usual approach to congressional decision making on racial issues is to make minor to moderate modifications in existing civil rights laws.

The political environment for black civil rights has changed since the mid-1960s, becoming more politicized and partisan. Republican gains in Congress, recalcitrant Democrats, executive-congressional conflict, and the fact that more social groups are seeking additional protection for their civil rights will make it increasingly difficult to get legislation of primary interest to most African-Americans enacted into law. The structure and operations of the policy-making process allow members of Congress numerous opportunities to water down civil rights proposals to render them virtually ineffective. Moreover, in a governmental body in which a single vote can decide the fate of a measure, there is all the more reason to suspect that it will be difficult for Congress to come to grips and deal effectively with the kinds of social and economic hardships that fall disproportionately on disadvantaged citizens.

Yet over the past two decades there have been some successes in legislative enactments. Congress deserves some credit, especially in the wake of recalcitrant presidential administrations and a conservative majority on the U.S. Supreme Court. At present the recalcitrance of the other two branches of the national government is all the more reason to underscore Congress' role as being in the vanguard of policy articulation on racial issues.

One of the goals of this research was to conduct a systematic investigation of several facets of congressional responsiveness to black interests. This study has included research on federal voting rights, race and racial redistricting, as well as the general field of civil rights.

Black Voting Rights

The Voting Rights Act of 1965 was originally targeted at dismantling the Jim Crow system, which for decades had been effective in preventing many blacks from participating in the voting process. There is strong evidence to show that the act has been effective in dismantling first-generation overt barriers to black voter participation. In fact, one researcher predicts that black and white voter registration rates will most likely converge sometime in the 1990s.¹ So, too, has there been an increase in the number of black elected officials. African-Americans now hold elective offices at virtually all levels of government. Between 1970 and 1992 their numbers increased fivefold, from 1,469 to over 7,552.² The act was a success mainly because of the high level of commitment by Congress toward protecting black voting rights.

Some academicians and politicians interpret increasing levels of black voter registration and the election of more black public officials to mean that racial minorities no longer need the protection of the Voting Rights Act. Abigail Thernstrom, one of the leading critics of federal voting rights protection, argues that electoral systems used to disadvantaged minority voters are no longer a major factor in minority vote dilution. There is, however, ample empirical evidence to show that second-generation voter discrimination is prevalent in America.

In the United States there are three kinds of electoral systems: at-large (contested seats on a governing body are chosen by all of the voters within a jurisdiction); single-member districts (an electoral district from which a single legislator is chosen, usually by plurality); and mixed systems (some of the seats on a governing body voted on at-large and some by district). The conventional wisdom is that minority candidates are disadvantaged by at-large elections because they have more difficulty winning elective office in majority-white jurisdictions. In other words, the tendency for whites to engage in bloc voting in at-large elections diminishes the likelihood that minority candidates will be elected to office. In one of the most comprehensive analyses of the impact of electoral systems on minority representatives undertaken since the inception of the Voting Rights Act, the findings of the authors and contributors of the *Quiet Revolution in the South* offer strong support for the biasing effect of at-large elections. In their longitudinal analysis of over one thousand cities in eight southern states spanning a three-decade period (1965–89), the researchers found that, in hundreds of small towns across the region, minority vote dilution continues to be a reality in the United States.³ The authors of the book conclude that, while “the Voting Rights Act has wrought a “quiet revolution” in southern politics and is perhaps the single most successful civil rights bill ever passed, the need for it is far from over.”⁴

At present areas covered by the act may make no change in voting practices without preclearance by the attorney general or the United States Court of Appeals for the District of Columbia. Examples of voting and election practices that must be precleared include changes in the composition of the electorate such as changes from ward to at-large elections or changes in voting districts' boundary lines, changes in candidacy requirements and qualifications such as filing deadlines, and changes in the locations of polling places. Under current law these changes cannot be pre-cleared by local federal district judges because of the fear that they might succumb to local political pressures.

Controversy over what constitutes minority vote dilution and the issue of federal preclearance will undoubtedly continue in the future. As stated earlier, in 1981 when the act came up for a vote in the House, southern Republicans sought to remove the federal preclearance provision, claiming that it unjustly singled out southern states for voting rights violations. Although they insisted there was no need for the provision, the federal government had vetoed hundreds of proposed changes in their voting laws or practices. In essence the future of black voting rights seems to be tied to federal voting rights protection.

Members' Race

The evidence reported in this book points to the conclusion that race is a factor in congressional roll call voting on black policy preferences. The results of this research demonstrate that the election of blacks to Congress goes beyond the notion of descriptive and symbolic representation into the substantive area of public policy. Policy pay-offs may come in the form of more effective antidiscrimination policies in the areas of education, employment, and housing. Or policy rewards may come from higher increases in minimum wages and unemployment compensation to help alleviate some of the economic hardships that fall disproportionately on blacks and other minorities.

The Congressional Black Caucus has seen its membership swell from nine members in 1970 to thirty-nine (including nonvoting delegate and senator) in the 105th Congress. With this growth comes the potential for more political clout in Congress and, subsequently, better policy representation for blacks. As a unit, the Black Caucus can use its size to place race-relevant issues higher on the national political agenda. The Black Caucus can use its size in House deliberations to emphasize the need for increased spending on social and economic programs beneficial to blacks, women, and minorities. As a consequence of its increased size and leverage, the CBC should be in a better position to bring relevant issues to the House floor for action, eventually to be passed in the chamber.

Another important factor that might increase the political influence of black representatives in the future is the fact that some of the more senior members in the House are black. The creation of majority-minority districts enhances the electoral fortunes of black incumbents. As of the 105th Congress, there are five black representatives whose careers extend beyond

twenty years. Several other members have been in Congress for at least ten years (see [table 11](#)). More important, accompanying this longevity is the opportunity for blacks to chair more committees and subcommittees. In the 103d Congress, for example, four African-Americans served in important leadership positions: John Conyers Jr. (chair of Government Operations Committee), Ronald V. Dellums (chair of Armed Services Committee), William L. Clay (chair of Post Office and Civil Service), and John R. Lewis (chief deputy majority whip). Although these positions do not guarantee influence, they do give African-Americans additional leverage in advancing black-favored legislation. If this trend continues, African-American legislators can reach new levels of political influence and power. Of course, their opportunity to chair committees and subcommittees is contingent on their party's control of the chamber.

As a result of the 1994 congressional elections, Republicans took control of both the Senate and the House for the first time in more than forty years. There was no change in the balance of power after the November 1996 congressional elections. The Democrats' loss of the House has diminished the caucus's influence to some degree in the 104th Congress. The transfer of power meant that black lawmakers had to relinquish their leadership positions. The Republican Party leadership also cut off the caucus's funds for salaries and operations. Nonetheless, as a solid bloc of Democratic votes in an assembly in which one vote can make the difference in the outcome of a legislative proposal, the CBC can continue to make its presence felt on a variety of issues.

As the CBC has grown, its membership has become more diverse. The Black Caucus can no longer be considered a small cadre of liberals from big cities with an urban perspective. Some members come from urban districts, while others represent the interests of rural constituencies or a mix of the two. Some represent districts that are more impoverished than others. Furthermore, as of the 105th Congress, one of the members of the Black Caucus is a Republican (J. C. Watts of Oklahoma). There were two black Republicans in the 104th Congress. Increased size and differences within the group may lead to internal conflict. If so, then there is the possibility that the overall quality of substantive representation for African-Americans may be adversely affected. Former chairman of the CBC, Kweisi Mfume, of Maryland, acknowledged the potential for schism within the organization when he noted: "I realize this is a challenge . . . but I honestly believe that the task is manageable. We can grow and diversify and evolve while at the same time increasing our effectiveness."⁵

To be influential and effective black representatives, like other members, have to negotiate, bargain, compromise, and follow congressional norms and procedures. In short, to get black interest legislation passed in the chamber, they need votes. Their success depends on the assistance they can get from their colleagues. In an attempt to fulfill its objectives, in 1984, the Black Caucus began accepting white associate members. These members work to draft and frame legislation to advance the interests of minority citizens. And their roll call voting behavior reveals that they are supportive of black-favored legislation. While there is ample evidence to show that there are white members in the chamber who support black policy preferences, the findings in this book reveal that there is no cohort in Congress that represents the views, values, or interests of the black community better than black members of Congress.

Racial Redistricting

Since the passage of the Voting Rights Act of 1965, civil rights activists have argued that the creation of majority-black districts is necessary for increasing black representation in order for blacks to have a more effective voice in the chambers of Congress. There is evidence in this book to show that the policy interests of most African-Americans are better reflected in the legislative activities of black lawmakers.

Thus far civil rights advocates have been successful in impressing their view on Congress and the courts. But the 1990s round of redistricting has spawned a storm of controversy unlike any before. The length to which redistricters went to draw some majority-minority districts has incurred the wrath of the U.S. Supreme Court (*Shaw v. Reno* [1993]; *Miller v. Johnson* [1995]; *Bush v. Vera* [1996]). In particular, the Court expressed a strong dislike for majority-minority districts with elongated, contorted boundaries. Although justification for the drawing of district lines to include more majority-minority populations can be found in the Voting Rights Act (as amended in 1982) and *Thornburg v. Gingles* (1986), nonetheless, critics contend that the creation of these districts constitutes federal encroachment into state affairs and is a form of "political apartheid." It is interesting to note that oddly configured boundaries are nothing new to the American political landscape. Incumbents and party candidates have long recognized the advantages of constructing boundary lines as a means of enhancing their electoral fortunes. Consequently, one is left with the impression that the Court was willing to tolerate contorted boundary lines until racial minorities gained enough political clout to claim their spoils in the political system.

Beyond the question of whether the creation of these districts is an unwarranted intervention of the federal government into state prerogatives is the perennial question: What is the best electoral strategy for maximizing black congressional representation? One alternative electoral strategy that has been proposed is that African-Americans should focus more on building biracial strategies instead of concentrating on creating black majority districts. An advocate of the biracial campaign strategy is Carol Swain, who states that "districts with black majorities are clearly not the black politician's only route to Congress. . . a more promising strategy is to elect blacks in districts without black majorities."⁶ She contends that black candidates can win in non-majority black districts if they can supply white voters with plenty of information about themselves and their campaigns to overcome any predisposition to vote on the basis of race. Intuitively, the biracial campaign strategy makes sense because of the relatively small size of the black population and its distribution and concentration level in the United States. Ideally, the biracial campaign is the best-case scenario and should be carefully considered by candidates running for elective office. The major defect of the biracial campaign strategy is that it discounts the significance of racially polarized voting in the United States. There is still little empirical evidence to support the conclusion that black congressional candidates can win on a consistent and long-term basis in districts that contain a majority of non-Hispanic white voters. For example, of the six major party black congressional challengers who ran against a white candidate in non majority black

districts during the general election campaign of 1994, only one. Republican J. C. Watts of Oklahoma, was victorious.⁷ After the 1996 elections, Democratic candidate Julia Carson of Indiana was the only black nonincumbent candidate elected from a solid majority-white district. It must be kept in mind that four of the five black congressional candidates (Sanford Bishop Jr. and Cynthia McKinney of Georgia, Corrine Brown of Florida, and J. C. Watts of Oklahoma) who won in majority-white districts in November 1996 were incumbents. The electoral advantage of incumbency is well-known in academic and political circles. Typically, more than 90 percent of House incumbents win reelection in a given year. In November 1996, for example, 94 percent of them won their reelection bid. The only black congressional incumbent to lose his bid for reelection was Republican Gary Franks of Connecticut. What these numbers suggest is that the number of blacks in Congress is almost invariably related to the proportion of blacks in a district. Their probability of winning is greatly enhanced when the district is either majority black or majority-minority. Therefore, until there is more evidence to show that racially polarized voting has declined and more black nonincumbent candidates can win in majority-white districts, the campaign strategy of building a biracial coalition is unlikely to produce the desired results.

Another alternative electoral and political arrangement that has been offered as a means of maximizing black representation is called “cumulative voting.” Awareness of this proposal was heightened during the controversy in 1993 surrounding the failed nomination of civil rights attorney Lani Guinier as assistant attorney general for civil rights. Guinier is critical of the current electoral system for what she attacks as being the “triumph of tokenism.”⁸ Guinier’s reform proposal is based on the premise that the system of plurality voting in single-member districts greatly advantages white majorities and in turn dilutes minority voting strength. The logic is that the majority usually garners a higher share of seats than votes cast under this system. Because of the bias in the electoral system toward majority majority-white constituencies, seats held by racial minorities will be smaller than their share in either the general or voting-age population.

As an alternative to the single-member plurality system of elections, Guinier proposes a form of proportional representation that gives each voter a number of votes equal to the position to be filled. For instance, if there were ten congressional seats, each voter would have ten votes. Each voter would then be allowed to cast his or her votes among the candidates in any manner desired. Thus, a voter could cast one vote for each of ten candidates, ten votes for only one candidate, eight votes for one candidate and two for another, or any other collectivity chosen by the voter. On the one hand, proponents contend that cumulative voting will allow more opportunities for racial minorities to gain representation, by pooling their votes behind candidates of their choice. Advocates of this system also argue that cumulative voting has the advantage of being a nonracial

means to increase minority representation.⁹ In other words, the government does not have to engage in race-conscious districting for minorities to gain congressional representation. Furthermore, the contention is that a proportional representational system corrects for some of the defects under the current system such as wasted and diluted votes. On the other hand, critics maintain that this system violates the egalitarian principles imbedded in the judicial criterion of “one person, one vote” rule of governance. It is important to note that Guinier does not totally abandon majority-minority districts as a means of advancing black congressional representation. Yet, according to her, race-conscious districting would be unnecessary if a more equitable electoral system is placed in effect.

The merits of different electoral systems is beyond the scope of this book. The discussion is only to point out the direction of future debate. At present no member in Congress has proposed cumulative voting to replace the current single-member plurality district electoral system. It would seem that the best strategy for electing more black representatives is the creating of majority-minority districts.

The creation of these districts is designed to compensate for the discriminatory nature of the electoral system. It is also a justiciable means of controlling “majority tyranny”—that is, the potential of a majority to monopolize power for its own gain and to the detriment of minority rights and interests. In creating these districts, however, there is the risk of eviscerating the biracial power bases of white liberal Democrats if district lines are drawn in a manner that substantially reduces the proportion of blacks in their districts. A confluence of factors may produce this effect, including excessive packing of black voters and the precision with which district lines are drawn by political cartographers. Unfortunately, the Voting Rights Act’s extension in 1982, or the post-1982 vote diluting caselaw, gave little direction to planners in addressing electoral arrangements for redistricting. The 65 Percent Rule appears to be too simple a solution to a complex issue. In the future it would seem that more careful consideration should be given to other factors, including the sociodemographic composition in the area (e.g., percentage of blacks with a high school or college education), the black voting-age population and black voter registration data, and the overall history of black voting in the area.

Those liberals who are opposed to the creation of black majority districts on the grounds that it would undermine the overall substantive objectives of minorities must keep in mind that for most of this nation’s history blacks have been without a voice in the halls of Congress. At some point it becomes a subjective decision about the representational tradeoffs in creating these types of districts. As one researcher on the topic of racial redistricting notes:

the effects must be weighed against the losses in system legitimacy and stability when minority voices are not well represented. This is a judgement call well within the range of normal democratic choices.¹⁰

Looking Ahead

The purpose of this research was to enrich our understanding of policy responsiveness to blacks using the most central actor in lawmaking, the United States’ Congress. It is also hoped that this research has laid the groundwork for systematic investigation into some important questions in the future. How far must political cartographers go to create a majority black or Hispanic district in a state? What are the political trade-offs in using race as a driving force in drawing district lines? How

large must a majority-black or majority-minority district be in order to be acceptable? These are just a few of the perennial questions to be resolved in the future. What policymakers decide on these questions will have an important impact on future race relations and the quality of life for people of color in America.